

Calendar Line 6

Case Name: *Maria Aroche Lologo v. Ford Motor Company*

Case No.: 24CV455441

Defendant Ford Motor Company's ("Ford" or "Defendant") motion for summary judgment, or alternative, summary judgment, in its favor and against Plaintiff Maria Aroche Lologo ("Plaintiff"). Pursuant to California Rule of Court 3.1308, the Court issues its tentative ruling as follows:

I. BACKGROUND & FORD'S UNDISPUTED MATERIAL FACTS

This is an action for violations of the Song-Beverly Warranty Act ("Song-Beverly" or the "Act") (Civ. Code, §§ 1790 et seq.). Plaintiff alleges that she purchased a vehicle manufactured and/or distributed by Ford (the "Vehicle") and that various defects manifested during the applicable warranty period, including but not limited to transmission defects, engine defects and electrical defects. (Complaint, ¶¶ 10, 15-19.) Based on these alleged violations, she initiated the instant action with the filing of the Complaint on December 31, 2024, asserting claims for: (1) violation of Civil Code § 1793.2, subd. (d); (2) violation of Civil Code § 1793.2, subd. (b); (3) violation of Civil Code § 1793.2, subd. (a)(3); (4) breach of implied warranty of merchantability; (5) negligent repair; (6) fraudulent inducement-concealment.²

According to the materials submitted by Ford in support of its motion, on November 24, 2018, Plaintiff purchased the Vehicle, a used 2017 Ford Escape with 44,433 miles on the odometer. (Defendant's Separate Statement of Undisputed Materials in Support of Motion for Summary Judgment/Adjudication ("UMF"), No. 1.) The Vehicle was originally purchased new by a prior customer on June 14, 2016, and came with Ford's New Vehicle Limited Warranty (the "Warranty"), which includes a three-year/36,000-mile Bumper-to-Bumper Warranty (whichever comes first) and a five-year/60,000-mile Powertrain Warranty (whichever comes first). (UMF Nos. 3, 4.) The Warranty began to run on the date of the original purchase. (UMF No. 5.)

The Vehicle was present for five out-of-warranty repairs- on January 14, 2020, December 9, 2021, September 20, 2022, February 5, 2024 and July 17, 2024- during which various repairs were made, including battery and BMS sensor replacements and reinstallation of fan relays. (UMF Nos. 6-10.) These issues, if covered at all, would have fallen under various provisions in the Warranty. However, the Warranty had expired at the time of these presentations for repair as the Vehicle was beyond the allowable miles of coverage. (*Id.*) The Vehicle was also presented for routine maintenance on June 16, 2020, January 19, 2021, July 16, 2021, June 20, 2022, September 15, 2022, February 3, 2023, September 1, 2023, April 12, 2024, July 17, 2024; and September 6, 2024. (UMF No. 11.)

Ford filed the instant motion for summary judgment/adjudication on April 9, 2026. No opposition has been filed by Plaintiff.

² All claims are asserted against Ford, excluding the fifth for negligent repair, which was asserted against All Star Ford. Plaintiff dismissed All Star Ford as a party in this action on May 7, 2025.

II. ANALYSIS

A. Burden of Proof

“A defendant seeking summary judgment [or adjudication] must show that at least one element of the plaintiff’s cause of action cannot be established, or that there is a complete defense to the cause of action ... The burden then shifts to the plaintiff to show there is a triable issue of material fact on that issue.” (*Alex R. Thomas & Co. v. Mutual Service Casualty Ins. Co.* (2002) 98 Cal.App.4th 66, 72 [internal citations omitted].)

“The ‘tried and true’ way for defendants to meet their burden of proof on summary judgment motions is to present affirmative evidence (declarations, etc.) negating, as a matter of law, an essential element of plaintiff’s claim.” (Weil & Brown, Cal. Prac. Guide; Civ. Proc. Before Trial (The Rutter Group 2014) ¶ 10:241, p. 10-104, citing *Guz v. Bechtel National, Inc.* (2000) 24 Cal.4th 317, 334.) “The moving party’s declaration and evidence will be strictly construed in determining whether they negate (disprove) an essential element of plaintiff’s claim ‘in order to resolve any evidentiary doubts or ambiguities in plaintiff’s (opposing party’s) favor.’” (*Id.*, ¶ 10:241.20, p. 10-105, citing *Johnson v. American Standard, Inc.* (2008) 43 Cal.4th 56, 64.)

“Another way for a defendant to obtain summary judgment is to ‘show’ that an essential element of plaintiff’s claim cannot be established. Defendant does so by presenting evidence that plaintiff ‘does not possess and cannot reasonably obtain, needed evidence’ (because plaintiff must be allowed a reasonable opportunity to oppose the motion).” (*Id.*, ¶ 10:242, p. 10-105, citing *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 854-855.) “Such evidence usually consists of admissions by plaintiff following extensive discovery to the effect that he or she has discovered nothing to support an essential element of the cause of action.” (*Id.*)

B. Breach of Express Warranty Claims (First, Second and Third Causes of Action)

Plaintiff’s first three causes of action allege violations of the Song-Beverly Act, particularly Civil Code section 1793.2 (“Section 1793.2”). However, as Ford argues, Plaintiff’s claims are barred because Section 1793.2 only applies to a “new motor vehicle,” which does *not* include a used vehicle purchased with an unexpired manufacturer’s new car warranty like Plaintiff’s. (See *Rodriguez v. FCA US, LLC* (2024) 17 Cal.5th 189, 198-199; UMF Nos. 4-10.) Ford also establishes that these claims are barred because Plaintiff did not present the Vehicle for a single *warranty* repair as the Warranty had expired by the time she brought the Vehicle in for repairs. Section 1793.2, subdivision (d), does not require the manufacturer to make restitution or replace a vehicle where there were no repeat opportunities to repair the vehicle to conform with the warranty as a matter of law. (See *Silvio v. Ford Motor Company* (2003) 109 Cal.App.4th 1205, 1207.)

Thus, Ford meets its initial burden on these claims and Defendant, by failing to file an opposition, has not demonstrated the existence of a triable issue of material fact. Accordingly, Ford is entitled to summary adjudication of the first, second and third causes of action.

C. Breach of Implied Warranty (Fourth Cause of Action)

Next, Ford asserts that it is entitled to summary adjudication of Plaintiff's fourth cause of action because, as the Vehicle was purchased used, liability for breach of the implied warranty does not extend to it.

Indeed, "[o]nly distributors or sellers of used goods- not *manufacturers* of new goods- have implied warranty obligations in the sale of used goods." (*Nunez v. FCA US LLC* (2021) 61 Cal.App.5th 385, 398.) Thus, "liability for breach of implied warranty lies with distributors and retailers, not the manufacturer" (*Id.*) Here, Plaintiff purchased a used vehicle. (UMF No. 1.) Consequently, her breach of implied warranty claim against Ford- the Vehicle's manufacturer- fails as a matter of law. Again, in the absence of an opposition, no triable issue of material fact has been shown to exist. Therefore, Ford is entitled to summary adjudication of this claim.

D. Fraudulent Inducement-Concealment (Sixth Cause of Action)

Ford last asserts that it is entitled to summary adjudication of Plaintiff's remaining claim for fraud because (1) there is no evidence that Ford had prior knowledge of a transmission defect and (2) there is no evidence there were any presentations or repairs related to the transmission or that there was a transmission defect in the Vehicle.

As a general matter, the elements of a claim for fraudulent inducement based on concealment are: (1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been under a duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage." (*Marketing West, Inc. v. Sanyo Fisher (USA) Corp.* (1992) 6 Cal.App.4th 603, 612-613.)

To establish Plaintiff's lack of evidence of Ford's prior knowledge of a transmission defect, Defendant submits Plaintiff's responses to discovery, which is characterized as "factually devoid." When a defendant moves for summary judgment on the ground that a plaintiff has "no evidence" to establish an essential element of a cause of action, the defendant must support such a motion with discovery admissions or other admissible evidence following extensive discovery, showing that "plaintiff does not possess, and cannot reasonably obtain, needed evidence." (*Aguilar, supra*, 25 Cal.4th at pp. 854-855.) It is not enough for a moving defendant to show merely that a plaintiff currently "has no evidence" on a key element of the claim. (See *Gaggero v. Yura* (2003) 108 Cal.App.4th 884, 891, citing *Aguilar* ["the absence of evidence to support a plaintiff's claim is insufficient to meet the moving defendant's initial burden of production. The defendant must also produce evidence that the plaintiff cannot reasonably obtain evidence to support his or her claim."].) "Such evidence may consist of the deposition testimony of the plaintiff's witnesses, the plaintiff's *factually devoid discovery responses*, or admissions by the plaintiff in deposition or in response to requests for admission that he or she has not discovered anything that supports an essential element of the cause of action." (*Lona v. Citibank, N.A.* (2011) 202 Cal.App.4th 89, 110, emphasis added.)

Ford conducted written discovery in this matter, including propounding Special Interrogatories and Requests for Production of Documents. (UMF No. 17.) On September 2, 2025, Plaintiff served responses to Ford's Special Interrogatories and produced 24 pages of documents in response to the Requests for Production, which consisted of the Retail Installment Sales Contract, some repair orders for the Vehicle, Plaintiff's Insurance information, and Registration Card for the Vehicle. (UMF No. 18, 19, 24.) In its discovery requests to Plaintiff, Ford asked for all facts, persons, and documents to support Plaintiff's Fraudulent Inducement-Concealment cause of action. (UMF No. 20.) Plaintiff's responses are indeed devoid of facts, merely referring Ford to Plaintiff's document production. No facts are identified that indicate exclusive knowledge by Ford of the purported defects, and the documents produced by Plaintiff (see above) fail to show the same. Ford additionally submits *affirmative* evidence that the Vehicle was *never* presented for a transmission-related concern or issue. (UMF Nos. 13, 25.) Given this, the Court finds that Defendant has met its initial burden on this claim. In the absence of the existence of a triable issue, Ford is entitled to summary adjudication of the sixth cause of action.

In accordance with the foregoing, Ford's motion for summary judgment is GRANTED.

The July 16, 2026 Trial Assignment hearing and the July 20, 2026 trial dates are VACATED.

Ford shall prepare and submit the final order and proposed judgement, accompanied by the necessary Form EFS-020, within 10 days of the date of the hearing.

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Calendar Line 8

Case Name: *Amanda Hulse v. Mercedes-Benz USA, LLC et al.*

Case No.: 25CV462393

Plaintiff seeks an order compelling Defendant to provide a further response to Special Interrogatory, Set One, No. 30.³

Defendant's first argument in opposition is that it complied with 137 of Plaintiff's 138 discovery requests. But noncompliance with a single request is not excused by compliance with all others.

As for the single interrogatory at issue, Plaintiff argues that Defendant's objections are without merit or too general. Although Defendant's objections to SROG No. 30 are boilerplate and asserted to nearly every interrogatory, Defendant wisely has not relied on these objections to avoid answering the interrogatory. Instead, Defendant maintains that it properly responded to Interrogatory No. 30 by incorporating its document production via Code of Civil Procedure Section 2030.230. A responding party may respond to an interrogatory by specifying the writings from which the answer may be derived if (1) the answer would require the preparation of a compilation, abstract, audit, or summary of the documents, and (2) the burden or expense of preparing it would be substantially the same for either party. (Code Civ. Proc., § 2030.300.) These criteria are not met here. SROG No. 30 simply asks Defendant to identify who made the decision not to replace or repurchase Plaintiff's vehicle. Defendant does not need to prepare a summary of any documents to answer the interrogatory - it needs only to provide a person's name, home address, home telephone number, business address, and business telephone number. Requiring Plaintiff to dig through 112 pages of documents is unreasonable and would be more burdensome than simply requiring Defendant, the holder of the information, to provide a response to an inquiry the Court finds unquestionably relevant and discoverable.

The Court notes that Defendant states it is willing to meet and confer regarding the interrogatory at issue, yet in the February 6 correspondence, Defendant's counsel stated that Defendant "[stood] by its response" and would "not agree to supplement it." (Faulk Decl., Ex. C.) The time to be "amenable to meet and confer" was before the filing of motion was necessary.

Plaintiff's motion is GRANTED.

³ In her notice of motion, Plaintiff addresses the timeliness of the motion. A motion to compel further responses must be filed within 45 days of the service of the verified response or verified supplemental response, or the propounding party's right to compel has been waived. (Cal. Civ. Proc. § 2030.300(c).) "Unsworn responses are tantamount to no responses at all." (*Appleton v. Superior Court* (1988) 206 Cal.App.3d 632, 636.) Defendant served unverified responses to Special Interrogatories, Set One, on December 4, 2025, signed by counsel purporting to represent "GENERAL MOTORS LLC." (Migler Decl., Ex. A.) On January 15, 2026, Defendant supplemented its responses. (Faulk Decl. ¶ 5.) On February 6, 2026, in response to Plaintiff's concerns regarding the verifications, Defendant stated: "[v]erifications were served on February 5, 2026." (Faulk Decl., Ex. C.) Defendant does not challenge the timeliness of the motion and based on the above, Plaintiff's motion was filed timely.